A small, but influential minority of intellectuals, activists, editors, lawyers and public figures have objected to the Death Sentence as a matter of moral principle. They also argue that there is no empirical evidence to suggest that the Death Sentence works as a deterrent to terrorists. (How can it, when in this age of fidayeen and suicide bombers death seems to be the main attraction?)

If opinion polls, letters to the editor and the reactions of live audiences in TV studios are a correct gauge of public opinion in India, then the lynch mob is expanding by the hour. It looks as though an overwhelming majority of Indian citizens would like to see Mohammad Afzal hanged every day, weekends included, for the next few years. L.K. Advani, Leader of the Opposition, displaying an unseemly sense of urgency, wants him to be hanged[1] as soon as possible, without a moment's delay.

Meanwhile in Kashmir, public opinion is equally overwhelming. Huge angry protests make it increasingly obvious that if Afzal is hanged, the consequences will be political. Some protest what they see as a miscarriage of justice, but even as they protest, they do not expect justice from Indian courts. They have lived through too much brutality to believe in courts, affidavits and justice any more. Others would like to see Mohammad Afzal march to the gallows like Maqbool Butt[2], a proud martyr to the cause of Kashmir's freedom struggle. On the whole, most Kashmiris see Mohammad Afzal as a sort of prisoner-of-war being tried in the courts of an occupying power (which India undoubtedly is in Kashmir). Naturally, political parties, in India as well as in Kashmir, have sniffed the breeze and are cynically closing in for the kill.

Sadly, in the midst of the frenzy, Afzal seems to have forfeited the right to be an individual, a real person any more. He's become a vehicle for everybody's fantasies—nationalists, separatists, and anti-capital punishment activists. He has become India's great villain and Kashmir's great hero—proving only that whatever our pundits, policy makers and peace gurus say, all these years later, the war in Kashmir has by no means ended.

In a situation as fraught and politicized as this, it's tempting to believe that the time to intervene has come and gone. After all, the judicial process lasted forty months, and the Supreme Court has examined the evidence before it. It has convicted two of the accused and acquitted the other two. Surely this in itself is proof of judicial objectivity? What more remains to be said?

There's another way of looking at it. Isn't it odd that the prosecution's case, proved to be so egregiously wrong in one half, has been so gloriously